

24CV03205 Randy Kohn vs Ford Motor Company et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-05-29

Motion: Motion: Continue

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Tentative Ruling: Randy Kohn vs Ford Motor Company et al

Case Number

24CV03205

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 05/29/2026 - 10:00

Nature of Proceedings

Motion: Continue

Tentative Ruling

On June 7, 2024, plaintiff Randy Kohn filed his original complaint against defendant Ford Motor Company (Ford) and Perry Ford Mazda (Perry) alleging claims arising out of a vehicle warranty. Following the sustaining of a demurrer, plaintiff filed a first amended complaint (FAC) on October 21, 2024. Perry filed its answer to the FAC on November 27, 2024, generally denying the allegations thereof and asserting 23 affirmative defenses. Ford filed its answer to the FAC on March 3, 2025, generally denying the allegations thereof and asserting 27 affirmative defenses.

On August 29, 2025, the court set trial for February 27, 2026. On October 31, 2025, on the stipulation of the parties, the court continued trial to July 27, 2026.

On April 6, 2026, Ford and Perry filed their joint motion for summary judgment, or alternatively, for summary adjudication, noticed for hearing on July 10, 2026.

On April 27, 2026, Ford and Perry filed their motion to continue trial and associated dates or, alternatively, to advance the hearing on the motion for summary judgment. Ford and Perry note that the motion for summary judgment was timely filed but because of the court's impacted calendar was not set for hearing 30 days before trial.

On May 14, 2026, counsel for plaintiff filed a declaration stating that plaintiff does not oppose continuing trial but states that advancing the hearing on the motion for summary judgment would not allow plaintiff adequate time to prepare opposition to the motion.

Counsel shall appear at the hearing of this motion and be prepared to discuss this scheduling matter.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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